



DECISION

Complaint No. : POS/246/2025/R.Thar/2025.

Name and address of the complainant : Mr. Nale Mitho s/o Muhammad Umar Sand
r/o village Possarko, Taluka Mithi,
District Tharparkar @ Mithi,

Name of the Agency Complained against : Revenue Department.

Name & Designation of Investigating Officer : Mr. Muhammad Umar Panhwar,
Regional Director Tharparkar @Mithi.

Vetted by : Dr. Khalil-ur-Rahman Shaikh, Advisor – I,

Subject : COMPLAINT AGAINST THE REVENUE DEPARTMENT, DIPLO, REGARDING ILLEGAL ENCROACHMENT ON GOVERNMENT LAND SITUATED IN DEH PELORI, TAPA POSSARKO, TALUKA DIPLO, NEAR VILLAGE POSSARKO.

THE COMPLAINT

Mr. Nale Mitho s/o Muhammad Umar Sand, resident of Taluka Mithi, District Tharparkar, filed the present complaint on 28-07-2025 against the Revenue Department, Diplo, alleging illegal encroachment and cultivation of Government land situated at Deh Pelori, Tapa Possarko, Taluka Diplo, near Village Possarko,

PROCEEDINGS

2. The complaint was admitted under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991.

3. The matter was taken up with the Mukhtiarkar (Revenue), Taluka Diplo, District Tharparkar, In response, the Mukhtiarkar (Revenue), Diplo submitted a detailed report along with maps and supporting documents, stating that the complainant alleged that the respondents, namely Ali Nawaz S/o Dodo Khan and others, had illegally cultivated Government land situated at Makan Possarko, Deh Pelori, Tapa and Taluka Diplo. He further stated that the Mukhtiarkar, along with the concerned S.T./Beat Tapedar, verified the relevant revenue record and visited the disputed site on 12-09-2025 and upon verification, it was found that:

- Survey No. 88 (05-07 acres) and Survey No. 116 (02-33 acres), total measuring 08-00 acres, are entered in the name of Darya Khan S/o Gul Muhammad and others vide Entry No. 5 of VF-VII-B.
- Survey No. 90 (08-12 acres) and Survey No. 117 (01-29 acres), total measuring 10-01 acres, are entered in the name of the complainant Nale Mitho S/o Muhammad Umar Sand vide Entry No. 40 of VF-VII-B.

4. He also stated that during the site visit conducted on 12-09-2025, the survey numbers were measured in the presence of both parties. It was observed that:

- The respondents, being legal heirs of Darya Khan S/o Gul Muhammad, had illegally cultivated approximately 08-12 acres of Government land.
- The complainant Nale Mitho S/o Muhammad Umar Sand had also illegally cultivated approximately 04-00 acres of Government land thus, it was observed that the complainant had not approached with clean hands. No public way or pathway was found blocked at the site.

5. A rejoinder notice was issued to the complainant who appeared on 01-10-2025 and submitted his rejoinder, expressing dissatisfaction with the report submitted by the Mukhtiarkar and requested re-survey of the land. A notice was issued to the Mukhtiarkar (Revenue), Taluka Diplo, with a copy to the complainant for hearing fixed on 15-10-2025. Both appeared and the complainant reiterated his request for a fresh survey. Consequently, vide letter dated 03-11-2025, the Mukhtiarkar (Revenue), Taluka Diplo was directed to depute a Revenue Technical Survey Team to carry out proper measurement of Survey No. 88 (05-07 acres) and Survey No. 116 (02-33 acres).

6. In compliance, the Mukhtiarkar (Revenue) submitted a report dated 01-01-2026, stating that a team of Tapedars was constituted and measurement/demarcation of the said survey numbers was carried out in accordance with the revenue record. It was suggested that if the complainant is dissatisfied with the measurement/ demarcation, he may approach the Superintendent, Survey, Mirpurkhas, for demarcation on payment of the Government cost/ fees.

FINDINGS

- The Mukhtiarkar (Revenue), Diplo conducted surveys and carried out demarcation of the disputed land.
- Complete reports and supporting revenue documents were also submitted.
- The dispute primarily relates to land demarcation, which falls within the exclusive jurisdiction of the Survey Superintendent under the relevant revenue laws.

DECISION

7. In view of the above facts and circumstances, I, in exercise of powers conferred under Section 11 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991, do hereby dispose of the case as closed with the direction to Superintendent, Survey, Mirpurkhas to carry out demarcation of land of the complainant after completion of required codal formalities.

Given under my hand and seal of Office



Sd /-
(Muhammad Sohail Rajput)
Sitara-e-Imtiaz-PAS
Ombudsman Sindh

Karachi, dated 11th March, 2026.